

MBrain — Interview with Dr. Madhan: How You Actually Evaluate and Build Patents

Purpose: This is not a theory questionnaire. It's asking you to describe, in your own words, how you actually do the work — evaluating novelty, spotting a patent opportunity in a pile of technical material, identifying hidden or unrealized ideas in a body of work, generating a new invention concept, deciding what's worth filing, and judging what would make an existing draft stronger. Your answers become the encoded reasoning MBrain runs on. MBrain is being built to *be* the decision layer the Harvesting and Seeding engines act on — the system that calls novelty, flags candidates, reviews patents, and surfaces improvement suggestions on its own, without a person re-checking each verdict. The goal is for MBrain's reasoning to stand in for yours at the point of decision, so describe your thinking in enough detail that it could run as a standing rule, not just as a one-off judgment call. If a question doesn't match how you actually think about the problem, say so instead of forcing an answer — that's useful too.

How to fill this in: Each question has a suggested length — a rough guide, not a limit. Write as much or as little as it takes to actually explain your thinking; a one-line answer to a 200-word question is fine if that's genuinely all there is to it. Plain text, voice memo transcribed, bullet points — whatever's fastest for you. Real past examples beat abstract descriptions every time.

Section 0 — A Few Basics

0.1 When you finalize a novelty/inventiveness verdict, what tells *you* it's settled and doesn't need a second look — what's the internal checkpoint that makes a call final rather than provisional? That checkpoint is what MBrain needs to replicate to act as the closing authority itself.

Suggested length: ~30 words

Answer:

0.2 As Cortexa takes on new domains or new types of clients, how would the system itself recognize that its current rules no longer fit — what would be the tell-tale sign in the material or in its own outputs? Describe it as a pattern MBrain should watch for, not as a reminder for someone to go check.

Suggested length: ~40 words

Answer:

0.3 How many past evaluations, harvests, or invention concepts could you realistically pull from to use as real examples here (even if anonymized)? Roughly how many, and is there anything sensitive that would need the client's name/details stripped first?

Suggested length: ~40 words

Answer:

Section 1 — Compliance & What You Will and Won't Say (Governance)

1.1 Which countries' patent offices do you actually file in or advise on most often today? (US, Europe, India, Australia, Singapore, others?) Rank the ones that matter most to get right first.

Suggested length: ~40 words

Answer:

1.2 When you've used any AI tool to help draft or research something for a client, how do you personally decide whether that needs to be disclosed to the patent office? Walk through your actual reasoning, not the legal textbook version.

Suggested length: ~150 words

Answer:

1.3 Is there a type of advice or a specific phrasing you deliberately avoid giving a client, because it would cross from "patent intelligence" into "legal advice" territory? What's an example of something you'd rephrase or decline to say outright?

Suggested length: ~150 words

Answer:

1.4 When you review a batch of proposed new invention concepts before they go to a client, how long does that actually take you per concept, and what's your pass/fail gut check in the first 30 seconds of looking at one?

Suggested length: ~100 words

Answer:

Section 2 — How You Actually Judge Novelty

2.1 Walk through 2-3 real cases where you had to decide "this is close to existing work, but still novel" versus "no, this is already done." What specifically made the difference in each case?

Suggested length: ~300 words

Answer:

2.2 When two inventions differ, do some kinds of difference matter more to you than others — e.g., a different physical/structural approach vs. a different way of achieving the same result vs. solving a completely different problem? How do you rank these in your head?

Suggested length: ~150 words

Answer:

2.3 Have you ever called something novel where no single piece was new on its own, but putting them together was? What made that combination count, in your view, versus a combination that wouldn't?

Suggested length: ~200 words

Answer:

2.4 Tell me about a time you initially thought something was novel, then changed your mind after finding a specific prior reference. What was the moment that changed it for you?

Suggested length: ~200 words

Answer:

2.5 Does working in a country with a grace period (like the US or Australia) versus one without change how you evaluate the invention itself, or only what you tell the client about filing deadlines?

Suggested length: ~80 words

Answer:

Section 3 — How You Find Patent Opportunities, Review Them, and Improve Them (Harvesting)

3.1 When you're going through a client's technical documents, codebase, or project notes looking for patent opportunities, what do you actually notice first — before you even start thinking about novelty? Describe your scanning process.

Suggested length: ~250 words

Answer:

3.2 Does what you look for change by domain — software architecture vs. machine learning/algorithms vs. hardware vs. a business process or workflow? Give a different example signal for at least two different domains.

Suggested length: ~250 words

Answer:

3.3 What's something that looks like a strong patent opportunity to someone without your experience, but you'd dismiss immediately? What tips you off that it's not actually one?

Suggested length: ~200 words

Answer:

3.4 When you flag something as worth pursuing, how confident do you usually feel, and what separates "worth a second look" from "drop everything, prioritize this one"?

Suggested length: ~150 words

Answer:

3.5 When you review an existing draft, filing, or invention write-up rather than raw material, what do you check to judge whether it actually holds up — and separately, when something is sound but weak, what kind of change do you suggest to strengthen it (broader claim scope, a different angle on the same idea, evidence it's missing)? Walk through a real example of each.

Suggested length: ~250 words

Answer:

3.6 Sometimes the real invention in a piece of work isn't the thing the author thinks they built — it's a side effect, a workaround, or an implementation detail they didn't flag as notable. How do you spot that kind of hidden idea, and what in the material tips you off that something unflagged is actually the more patentable part?

Suggested length: ~200 words

Answer:

Section 4 — How You Create New Invention Ideas From an Existing One (Seeding)

4.1 Given an existing patent, product, or piece of technology, how do you come up with new, adjacent invention ideas from it? Is there a method you repeat, or is it closer to free brainstorming you narrow down afterward? Describe your actual process.

Suggested length: ~250 words

Answer:

4.2 How do you tell the difference between a new idea that's genuinely patent-worthy on its own, versus one that's just an obvious variation of the original that wouldn't survive scrutiny?

Suggested length: ~200 words

Answer:

4.3 Roughly how many new ideas do you typically generate in one sitting before narrowing down to the ones worth developing further? What's your narrowing process?

Suggested length: ~100 words

Answer:

4.4 Once you've narrowed down to the ideas worth developing, what's the actual go/no-go test that decides whether one proceeds to drafting versus gets shelved? This is the gate MBrain needs to run on its own before Seeding hands anything downstream — describe it as a decision rule, not a feeling.

Suggested length: ~150 words

Answer:

Section 5 — Topics for Later (Light Answers Only, Skip If Short on Time)

These don't have a system being built around them yet — rough notes now save a second round later.

5.1 What's your mental test for deciding a skilled person in the field would — or wouldn't — have arrived at this invention without the specific insight involved? Any fields where you find this unusually hard to call?

Suggested length: ~150 words

Answer:

5.2 When you tell a client "this is patentable, but I wouldn't bother filing it," what's actually driving that call — market size, how enforceable it would be, cost vs. benefit, something else?

Suggested length: ~150 words

Answer:

5.3 How do you decide a new idea should extend an existing patent family (a continuation) versus stand alone as a new, separate filing?

Suggested length: ~100 words

Answer:

Section 6 — Real Cases (Most Valuable Section — Do This Even If Nothing Else)

6.1 Give 3-5 real cases (anonymize client/technical details if needed). For each one, include: what the invention was, your actual novelty/inventiveness verdict, what you told the client and why, and the outcome if you know it (filed / not filed / granted / rejected).

Suggested length: ~400-600 words per case

Case 1:

Case 2:

Case 3:

(add more below if you have them)

Section 7 — A Couple of Your Calls on How We Should Build This

7.1 We're planning to build a system that scores novelty 0-100 and inventiveness 0-100. Does thinking about your own judgment as a single number like that feel right to you, or does it flatten something that's genuinely not a single-number decision? If the latter, what would you want instead?

Suggested length: ~150 words

Answer:

7.2 If MBrain's call turns out wrong, what's the actual reasoning gap that caused it — the kind of detail that, once captured, lets the system correct that class of error on its own going forward rather than needing a person to catch the same mistake each time?

Suggested length: ~100 words

Answer: